

Niue 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Niue during the year.

There were no credible reports of significant human rights abuses.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The law did not explicitly provide for freedom of expression; however, the democratic system and the judiciary protected freedom of expression, including for the media, and there were no reports of the government restricting this freedom.

b. Worker Rights

Freedom of Association and Collective Bargaining

No laws existed guaranteeing freedom of association, collective bargaining, or the right to strike. The law did not specifically prohibit antiunion discrimination, nor did it require the reinstatement of workers fired for union activity.

The law prohibited public employees from undertaking industrial action. The Niue Public Service Association represented employees of the Public Service Commission on matters affecting conditions of employment. There were no independent trade unions or nongovernmental organizations supporting the rights of workers in the private sector. There were no available reports regarding government recognition of freedom of association or the right to collective bargaining.

Forced or Compulsory Labor

There were no laws prohibiting forced or compulsory labor for private sector labor.

Acceptable Work Conditions

Wage and Hour Laws

Regulations detailed the Public Service Commission's wage and working hour obligations for government employees. No reports were available for private sector employees.

Occupational Safety and Health

Regulations detailed the Public Service Commission's occupational and health obligations to government employees. No reports were available for private sector employees.

Wage, Hour, and OSH Enforcement

There were no reports regarding enforcement of minimum wage, overtime, and occupational health and safety laws.

There was no law specifically pertaining to those who worked in the informal sector, such as those making handicrafts and other goods, and there were no wage, hour, or other labor protections provided by the law in these situations.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The law prohibited arbitrary arrest and detention and required good cause be established for the issuance of a warrant or for an arrest without a warrant.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <http://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

The law did not clearly criminalize all forms of human trafficking or remove the requirement of force, fraud, or coercion for child sex trafficking. There were no reports that traffickers exploited domestic or foreign victims in the country or exploited nationals as victims abroad.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibited such practices, and there were no reports that government officials employed them.

b. Protection of Children

Child Labor

There were no laws pertaining to the minimum age of employment, including for hazardous work.

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

Parental consent was required to solemnize the marriage of any woman or girl under age 19, or man under 21. With parental permission, the legal marriageable age was 15 for girls and 18 for men; however, marriage occurring in contradiction to this were not invalidated. There was no available data on the prevalence of child, early, or forced marriage. Information was not available on government measures to prevent or

mitigate early marriage.

c. Protection to Refugees

The law did not reference refugees or asylum seekers, although provisions outlined immigration procedures and procedures for the removal of persons in the country illegally. There were no reports of persons seeking asylum.

Provision of First Asylum

The law did not provide for granting asylum or refugee status, and the government had no system for providing protection to refugees. The principal immigration officer had wide discretionary powers under immigration laws and could allow noncitizens to remain, including on humanitarian grounds.

d. Acts of Antisemitism and Antisemitic Incitement

There was no known Jewish community; there were no reports of antisemitic acts.